

HOUSE No. 452

The Commonwealth of Massachusetts

PRESENTED BY:

Francisco E. Paulino

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the right to repair for agricultural equipment.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Francisco E. Paulino</i>	<i>16th Essex</i>	<i>1/8/2025</i>
<i>Lindsay N. Sabadosa</i>	<i>1st Hampshire</i>	<i>2/6/2025</i>
<i>Joan B. Lovely</i>	<i>Second Essex</i>	<i>3/27/2025</i>
<i>Leigh Davis</i>	<i>3rd Berkshire</i>	<i>3/28/2025</i>
<i>Shirley B. Arriaga</i>	<i>8th Hampden</i>	<i>3/28/2025</i>
<i>Danillo A. Sena</i>	<i>37th Middlesex</i>	<i>4/9/2025</i>
<i>Justin Thurber</i>	<i>5th Bristol</i>	<i>4/22/2025</i>
<i>Bud L. Williams</i>	<i>11th Hampden</i>	<i>4/30/2025</i>
<i>Sally P. Kerans</i>	<i>13th Essex</i>	<i>7/21/2025</i>

HOUSE No. 452

By Representative Paulino of Methuen, a petition (accompanied by bill, House, No. 452) of Francisco E. Paulino and Lindsay N. Sabadosa relative to the right to repair for agricultural equipment. Consumer Protection and Professional Licensure.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the right to repair for agricultural equipment.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1 . The General Laws are hereby amended by inserting after chapter 93K the
2 following chapter:-

3 Chapter 93K½

4 RIGHT TO REPAIR FOR AGRICULTURAL EQUIPMENT

5 Section 1 . For the purposes of this section, the following words shall, unless the context
6 clearly requires otherwise, have the following meanings:-

7 “Agricultural equipment” or “equipment”, equipment that is primarily designed
8 for use in a farm or ranch operation including: (i) a tractor, trailer, combine, sprayer, tillage
9 implement, baler and other equipment used to plant, cultivate or harvest agricultural products or
10 to ranch; and (ii) attachments to and repair parts for equipment described in clause (i).

11 Agricultural equipment shall not include: (i) a self-propelled vehicle designed primarily for the

12 transportation of individuals or property on a street or highway; (ii) a off-highway vehicle; (iii)
13 personal watercraft; (iv) a snowmobile; (v) any aircraft used in an agricultural aircraft operation;
14 or (vi) any equipment designed and used primarily for irrigation purposes.

15 “Authorized repair provider”, a person that is unaffiliated with a manufacturer other than
16 through an arrangement with the manufacturer, whether for a definite or an indefinite period, in
17 which the manufacturer, for the purpose of offering to provide services to an equipment owner
18 regarding the owner's equipment or a part, grants the person: (i) a license to use a trade name,
19 service mark or other proprietary identifier; or (ii) authorization under any other arrangement to
20 act on behalf of the manufacturer. An authorized repair provider shall include a manufacturer
21 that offers to provide services to an owner of the manufacturer's equipment regarding the owner's
22 equipment or a part if the manufacturer does not have an arrangement with an unaffiliated
23 person.

24 “Data”, transmitted or compiled information, with the consent of the owner, arising from
25 the operation of an owner's agricultural equipment or its parts.

26 “Documentation”, a manual, diagram, including a schematic diagram, reporting output,
27 service code description, security code or password or similar type of guidance or information,
28 whether in an electronic or tangible format, that a manufacturer provides to an authorized repair
29 provider to assist the authorized repair provider with services performed on the manufacturer's
30 equipment or a part.

31 “Embedded software”, programmable instructions provided on firmware delivered with
32 an electronic component of equipment or with any part for the purpose of restoring or improving
33 operation of the equipment or part. Embedded software shall include all relevant patches and

fixes that the manufacturer makes to equipment or to any part for the purpose of restoring or improving the equipment or part.

“Embedded software for agricultural equipment”, any programmable instructions provided on firmware delivered with or loaded to the agricultural equipment, with respect to agricultural equipment operation. Embedded software for agricultural equipment shall include all relevant patches and fixes that the manufacturer makes, including, but not limited to, items described as: basic internal operating system, internal operating system, machine code, assembly code, root code and microcode.

“Equipment dealer”, any person, partnership, corporation, association or other form of business enterprise that is primarily engaged in the retail sale of agricultural equipment.

“Fair and reasonable terms and costs”, shall have the following meanings:

(i) with respect to obtaining documentation, parts, embedded software, firmware or tools from a manufacturer to provide services, fair and reasonable terms and costs shall mean terms that are equivalent to the most favorable terms that the manufacturer offers to an authorized repair provider and costs that are no greater than the manufacturer's suggested retail price; provided that, except as set forth in clause (iv), costs shall be calculated using net costs incurred, accounting for any discounts, rebates or incentives offered.

(ii) with respect to documentation, fair and reasonable terms and costs shall mean that the manufacturer provides the documentation, including any relevant updates to the documentation, at no charge; except that the manufacturer may charge a fee for a printed copy of the documentation if the amount of the fee covers only the manufacturer's actual cost to prepare and send the printed copy of the documentation.

(iii) with respect to tools that are software programs, fair and reasonable terms and costs shall mean that the manufacturer provides the tools that are software programs: (A) at no charge and without requiring authorization or internet access or otherwise imposing impediments to access or use; (B) in the course of effectuating the diagnosis, maintenance or repair and enabling the full functionality of the equipment or part; and (C) in a manner that does not impair the efficient and cost-effective performance of the equipment or part.

(iv) with respect to parts for agricultural equipment, fair and reasonable terms and costs shall mean that, notwithstanding clause (i), parts shall be sold to an owner or an independent repair provider under equitable terms for access to or receipt of any part pertaining to agricultural equipment and in a manner that: (A) is fair to both parties in light of any agreed-upon conditions, the promised quality, and the timeliness of the delivery; or (B) does not discourage or disincentivize repairs to be made by an owner or an independent repair provider; provided that, terms shall be considered fair for purposes of this clause if the terms do not impose on an owner or independent repair provider any: (1) substantial obligation to use, or any restriction on the use of, a part, embedded software, embedded software for agricultural equipment, firmware or tool, including a condition that the owner or independent repair provider become an authorized repair provider of the manufacturer; or (2) requirement that a part, embedded software, embedded software for agricultural equipment, firmware or tool be registered or paired with or approved by the manufacturer or an authorized repair provider before the part, embedded software, embedded software for agricultural equipment, firmware or tool is operational.

“Firmware”, a software program or set of instructions programmed on equipment or a part to allow the equipment or part to function or communicate with itself or with other computer hardware.

79 “Independent repair provider”, a person in the commonwealth that is: (i) neither a
80 manufacturer's authorized repair provider nor affiliated with a manufacturer's authorized repair
81 provider; and (ii) engaged in offering or providing services. An independent repair provider shall
82 include: (A) an authorized repair provider if the authorized repair provider is offering or
83 providing services for a manufacturer other than a manufacturer with which the authorized repair
84 provider has an arrangement; and (B) a manufacturer with respect to offering or providing
85 services for another manufacturer's equipment or part.

86 “Original equipment manufacturer” or “manufacturer”, a person doing business in the
87 commonwealth and engaged in the business of selling, leasing or otherwise supplying new
88 equipment or parts manufactured by or on behalf of itself to any individual, business or other
89 entity.

90 “Owner”, a person that owns equipment or an agent of the owner.

91 “Part”, a new or used replacement part for equipment that a manufacturer offers for sale
92 or otherwise makes available for the purpose of providing services.

93 “Services”, diagnostic, maintenance or repair services performed on equipment or a part.

94 “Tools”, any software program, hardware implement or other apparatus used for
95 diagnosis, maintenance or repair of equipment or parts, including software or other mechanism
96 that provides: (i) programs, or pairs a new part; (ii) calibrates functionality; or (iii) performs any
97 other function required to return the equipment or part to fully functional condition.

98 “Trade secret”, the whole or any portion or phase of any scientific or technical
99 information, design, process, procedure, formula, improvement, confidential business or

financial information, listing of names, addresses, or telephone numbers, or other information relating to any business or profession which is secret and of value. To be a trade secret the owner thereof must have taken measures to prevent the secret from becoming available to persons other than those selected by the owner to have access thereto for limited purposes.

Section 2 . (a) For the purpose of providing services for equipment in the commonwealth, an original equipment manufacturer shall, with fair and reasonable terms and costs, make available to an independent repair provider or owner of the manufacturer's equipment any documentation, parts, embedded software, embedded software for agricultural equipment, firmware, tools or, with owner authorization, data that are intended for use with the equipment or any part, including updates to documentation, parts, embedded software, embedded software for agricultural equipment, firmware, tools or, with owner authorization, data.

(b) With respect to equipment that contains an electronic security lock or other security related functions, a manufacturer shall, with fair and reasonable terms and costs, make available to independent repair providers and owners any documentation, parts, embedded software, embedded software for agricultural equipment, firmware, tools or, with owner authorization, data needed to reset the lock or function when disabled in the course of providing services. The manufacturer may make the documentation, parts, embedded software, embedded software for agricultural equipment, firmware, tools or, with owner authorization, data available to independent repair providers and owners through appropriate secure release systems.

(c) Subsections (a) and (b) shall not apply to: (i) a part that is no longer available to the original equipment manufacturer; and (ii) conduct that would require the manufacturer to divulge a trade secret; except that a manufacturer shall not refuse to make available to an independent

repair provider or owner any documentation, part, embedded software, embedded software for agricultural equipment, firmware, tool or, with owner authorization, data necessary to provide services on grounds that the documentation, part, embedded software, embedded software for agricultural equipment, firmware, tool or, with owner authorization, data itself is a trade secret.

(d)(1) A manufacturer may redact documentation to remove trade secrets from the documentation before providing access to the documentation if the usability of the redacted documentation for the purpose of providing services is not diminished.

(2) A manufacturer may withhold information regarding a component of, design of, functionality of, or process of developing a part, embedded software, embedded software for agricultural equipment, firmware or a tool if the information is a trade secret and the usability of the part, embedded software, embedded software for agricultural equipment, firmware, or tool for the purpose of providing services is not diminished.

(e) Neither an original equipment manufacturer nor an equipment dealer is liable for faulty or otherwise improper repairs provided by independent repair providers or owners, including faulty or otherwise improper repairs that cause: (i) damage to agricultural equipment that occurs during such repairs; (ii) any indirect, incidental, special or consequential damages; or (iii) an inability to use, or a reduced functionality of a piece of agricultural equipment resulting from the faulty or otherwise improper repair.

(f) A manufacturer that provides data to an independent repair provider in compliance with this section is neither responsible nor liable to the owner, the independent repair provider or another party for any action that the independent repair provider or another party takes while using or relying on the data.

Section 3. (a) No contract or other arrangement, or renewal of a contract or existing arrangement, that an agricultural equipment original equipment manufacturer enters into shall:

(i) alter the terms of any contract or other arrangement in force between an original equipment manufacturer and an authorized repair provider, including the performance or provision of warranty or recall repair work and any exclusivity or noncompete clause in a contract;

(ii) authorize an independent repair provider or owner to: (A) make any modification to agricultural equipment that deactivates a safety notification system, except as necessary to provide services; (B) access any function of a tool that enables the independent repair provider or owner to change the settings for a piece of agricultural equipment in a manner that brings the equipment out of compliance with any applicable federal, state, or local safety or emissions law, except as necessary to provide services; (C) evade emissions, copyright, trademark or patent laws; or (D) engage in any other illegal equipment modification activities;

(iii) require a manufacturer to provide an independent repair provider or owner access to information, other than documentation, that the manufacturer provides to an authorized repair provider pursuant to a contract or other arrangement with the authorized repair provider; or

(iv) exempt a manufacturer from a products liability claim that is otherwise authorized in law.

(b)(1) With respect to a contract or other arrangement, or renewal of a contract or existing arrangement, that an original equipment manufacturer enters into after January 1, 2027 any contract term, provision, agreement or language in the contract or arrangement that waives,

165 avoids, restricts or limits the manufacturer's obligations under this chapter shall be void and
166 unenforceable.

167 (2) If an agricultural equipment manufacturer enters into, or is covered under, a
168 nationwide memorandum of understanding regarding a right to repair agricultural equipment, the
169 memorandum of understanding governs an owner's right to provide services, or to engage the
170 services of an independent repair provider, for that manufacturer's brand of agricultural
171 equipment; except that, if compliance with the memorandum of understanding would deny the
172 owner any rights afforded to the owner in this chapter, including any rights to documentation,
173 data, tools or embedded software for agricultural equipment necessary for the diagnosis,
174 maintenance or repair of the owner's agricultural equipment, the owner is entitled to the
175 documentation, data, tools or embedded software for agricultural equipment in accordance with
176 this chapter. An agricultural equipment manufacturer that enters into a memorandum of
177 understanding is still obligated to meet the requirements established under this chapter.

178 SECTION 2 . This act shall take effect on January 1, 2027.